

HOUSE No. 5485

The Commonwealth of Massachusetts

PRESENTED BY:

David Paul Linsky and James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Wayland Select Board to grant permission to use land for green burials.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>6/4/2026</i>

HOUSE No. 5485

By Representative Linsky of Natick and Senator Eldridge, a joint petition (accompanied by bill, House, No. 5485) of David Paul Linsky (by vote of the town) relative to permissions to use land for green burials in the town of Wayland. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Wayland Select Board to grant permission to use land for green burials.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding section 34 of Chapter 114 of the General Laws, except in the case of
2 erection or use of a tomb on private land for the exclusive use of the family of the owner, no
3 land, other than already so used or appropriated, shall be used for green burials unless granted
4 permission by the Select Board, but no such permission shall be given until the location of the
5 lands intended for such use has been approved by the Board of Health of the Town of Wayland,
6 following a public hearing.